

Development Office

AKL

Date: 7/29/15

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE PURSUANT TO SECTION 2.2.1 ZONING MAP AMENDMENTS, SECTION 5.1.2 ZONING DISTRICTS ESTABLISHED, AND SECTION 5.1.3 OFFICIAL ZONING MAP, OF THE UNIFIED DEVELOPMENT CODE, CHANGING THE ZONING CLASSIFICATION FROM NB NEIGHBORHOOD BUSINESS TO CB COMMUNITY BUSINESS FOR LOT 1, BLOCK 1, LOWE SUBDIVISION AND LOTS 1 AND 2, BLOCK 1, GOOD ADDITION, CHEYENNE, WYOMING, (LOCATED AT THE SOUTHEAST CORNER OF THE INTERSECTION OF DELL RANGE BOULEVARD AND RIDGE ROAD)."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner of the property described herein, has applied for a zoning map amendment ("zone change") for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code ("UDC").

Section 2. That on August 3, 2015, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as Lot 1, Block 1, Lowe Subdivision and Lots 1 and 2, Block 1, Good Addition, Cheyenne, Wyoming, is hereby changed to CB Community Business.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

FIRST READING:

SECOND READING:

3RD AND FINAL READING:

RICHARD L. KAYSEN, MAYOR

(SEAL)
ATTEST:

CAROL INTLEKOFER, CITY CLERK

publish date: _____

STAFF REPORT - SUMMATION

Good Addition & Lowe Subdivision

Zone District Map Amendment Process

CASE NUMBER(s): UDC-15-00424

SUBDIVISION CODE: GDA & LOS

PREPARED BY: Logan Graves

MEETING DATES: August 3, 2015 – Planning Commission

August 10, 2015 – City Council

REQUIRED DOCUMENTS SUBMISSION: The following required documents have been submitted and reviewed by staff.

- Complete Application
- Zone Change Map

RECOMMENDATION: The Development Office recommends approval of the zone change request from NB Neighborhood Business to CB Community Business for properties to be known as Good Addition and Lowe Subdivision.

PLANNING COMMISSION UPDATE (8/3/15): At its regular meeting on August 3, 2015, the Planning Commission voted to recommend approval of the Good Addition and Lowe Subdivision zone change, advancing it to the Governing Body.

CITY COUNCIL RECOMMENDATION: The Development Department recommends approval of the zone change request from NB Neighborhood Business to CB Community Business for properties to be known as Good Addition and Lowe Subdivision.

STAFF REPORT

Good Addition & Lowe Subdivision

Zone District Map Amendment Process

CASE NUMBER(s): UDC-15-00424 **SUBDIVISION CODE:** GDA & LOS
PREPARED BY: Logan Graves
MEETING DATES: August 3, 2015 – Planning Commission
August 10, 2015 – City Council

OWNER: Ryan Halder 515.457.6232
6400 Westown Parkway
West Des Moines, IA 50266

Carol Mead
X Diamond Development, LLC
6583 Red Cloud Trail
Cheyenne, WY

Daves Revocable Trust
4708 New Bedford Drive
Cheyenne, WY

AGENT: Sara Bower 402.938.2481
Olsson Associates
5285 McWhinney Blvd, Suite 16
Loveland, CO 80538

PROJECT: Good Addition & Lowe Subdivision Zone Change

WORK DESCRIPTIONS: Zone change from NB to CB

LOCATION:

1. Legal Description: Lot 1, Block 1, Lowe Subdivision and Lots 1 & 2, Block 1, Good Addition
2. Location: Southeast corner of Dell Range Boulevard and Ridge Road intersection
3. Address: 4505/4435 Ridge Road, Cheyenne, WY 82001

SIZE: Total site: 1.53 acres

CURRENT ZONING: NB Neighborhood Business

PROPOSED ZONING: CB Community Business

EXISTING LAND USE: Automobile Service Station – Limited

PROPOSED LAND USE: Automobile Service Station – General

SURROUNDING LAND USES:

SURROUNDING	LAND USE(S)	ZONING	JURISDICTION
North	Commercial	MUB	City
South	City ROW	NB	City
East	Commercial	NB	City
West	City ROW	MR-2	City

EXECUTIVE SUMMARY:

The applicant is requesting to amend the zoning map to change the zoning district for 4505 & 4435 Ridge Road from NB- Neighborhood Business to CB- Community Business. The applicant desires to rezone the subject property to redevelop and expand the existing commercial site and business. As proposed, the existing station and car wash would be demolished and a new station constructed.

The existing gas station was constructed in 1977 and met the zoning ordinance standards of the time. The station is currently oriented toward Ridge Road and is comprised of a 2,400 square foot convenience store and one gas pump island with four fuel stations. A car wash was constructed in 1985 directly south of the station but will not be reconstructed with the raze and rebuild project.

The proposed gas station would be reoriented toward Dell Range, and would include an approximately 6,466 square foot convenience store and four canopied gas pump islands. The proposal is anticipated to meet or exceed all CB zoning requirements which will be reviewed during the Site Plan process. The application will also include a proposal to modify property lines. This adjustment will be established through the Administrative Plat process.

The requested zone change from NB to CB would allow for the redevelopment and reasonable expansion of, and investment in, an existing commercial site and business. The current NB zoning designation would make it difficult to construct a large-scale gas station that would both meet the required setbacks and maintain appropriate circulation patterns within the site. Additionally, expansion of the gas station to allow for four gas pump islands would not be permitted under the current NB zoning designation. The NB zoning district permits up to two fuel pump islands with no more than eight fueling stations. Alternatively the CB zoning district permits by right up to four fuel pump islands with no more than 16 fueling stations.

The proposed zone change is requested in order for the applicant to increase the number of fuel pumps, and allow for site improvements for the convenience store. The CB district is a more typical zone along the Dell Range corridor and is more conducive to larger commercial developments. The redevelopment of the property as a gas station is appropriate. The property's location at the intersection of Dell Range and Ridge, two major roadways is well suited for a gas station. This is proven by the fact that a viable station has occupied the site for nearly 40 years. The gas station use would meet all standards as outlined in the zoning ordinance and the redevelopment would aesthetically improve both the property and the intersection.

ZONE CHANGE DATA: In reviewing, providing comments, and making recommendations and decisions on a proposed Zone Change Request, the Staff, Planning Commission and City Council shall use the following criteria:

PLANCHEYENNE - The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.

Community Business is the designation given to the subject area within ShapeCheyenne, which has the future land use map within PlanCheyenne. Community Business areas encourage a range of retail and office uses to serve neighborhoods and the community and region, usually located at the intersection of two major arterial roadways. Appropriate primary uses include supermarkets, general retail, office and large tenant retail. The site is near properties zoned CB and development trends and patterns in the area largely reflect CB development standards.

SURROUNDING AREA - The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.

The existing zoning is NB Neighborhood Business. A designation of CB Community Business is compatible with nearby property. As previously discussed, the CB Community Business zone district is able to fit within the context of the Community Business future land use designation and is therefore compatible with the comprehensive plan.

ZONING: BASIC STANDARDS & USES - The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district;

It would be challenging for the subject property to develop according to the standards and uses of the existing zoning district. Under the proposed CB Community Business zone district, the property would be able to be developed according to the standards of that district as laid out by the Cheyenne UDC.

STREETS & OPEN SPACE - The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning;

The property should be able to be developed according to the standards in Section 4 of the UDC. Open Space will be further evaluated at the time of Site Plan Review, at which time any requirements or exceptions thereto will be determined.

ZONING: INTENT, APPLICABILITY & DESIGN OBJECTIVES - The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.

The CB Community Business zone district is intended for Retail, Employment, Service and Civic uses that may serve a number of residential neighborhoods or other districts. These uses should

meet regulations that will assure maximum compatibility with the surrounding residential areas. This property would be able to meet that intent within the context of a Community Business land use in the area.

ZONING: FUTURE DEVELOPMENT - The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.

If for some reason the specific development proposed in association with the application is not executed, other uses will be viable on this property and should be able to meet CB zoning standards.

REVIEWING AGENCIES W/ COMMENTS:

- None

REVIEWING AGENCIES W/O COMMENTS:

- Development Department (Brandon Cammarata)
- Engineering Department – General (Nathan Beauheim)
- Engineering Department – GIS/Tech (Gary Stogsdill)
- Metro Planning Office (Nancy Olson)
- WyDOT (Randy Griesbach)

REVIEWING AGENCIES NOT RESPONDING:

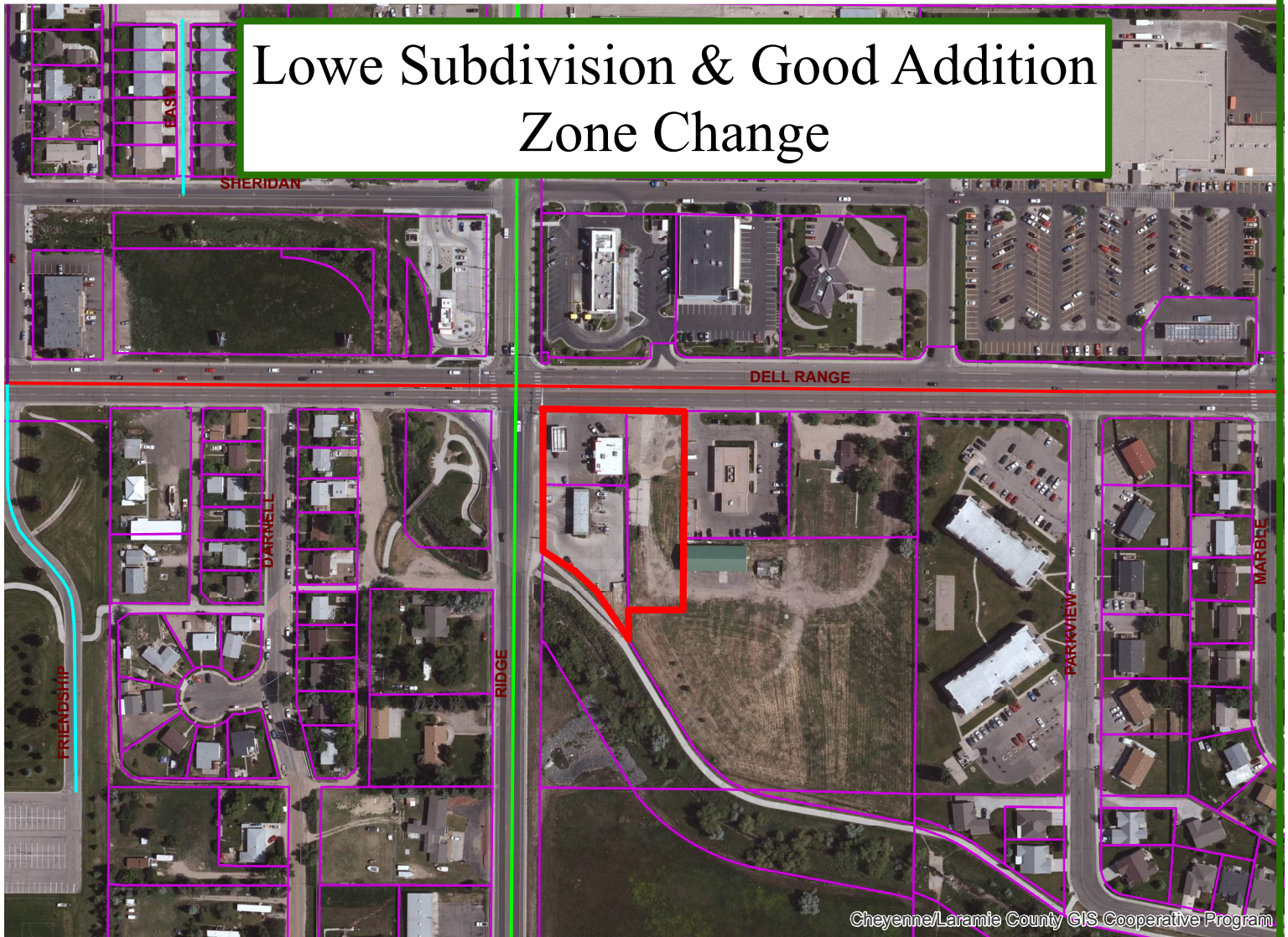
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OTHER COMMENTS RECEIVED:

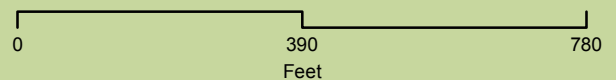
- None

cc: Owner
Agent/Applicant
File

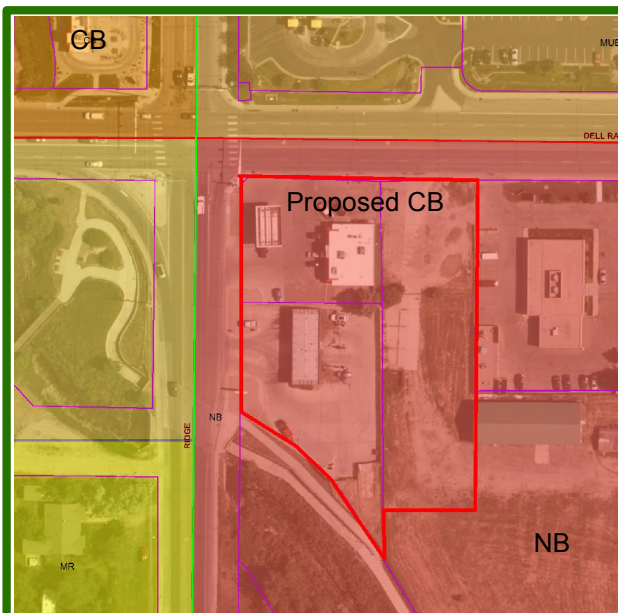
Lowes Subdivision & Good Addition Zone Change



Applicant: Kum & Go, L.C.
Agent: Sara Bower, Olsson Associates
Application Numbers
Zone Change: UDC-15-00424



Zone Districts



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

Future Land Use



